

not to have accepted the trust by merely taking the settlement into his custody until a trustee could be found (e).

14. **Devisee of several trust estates.** — If [in a case not falling within the Conveyancing and Law of Property Act, 1881 (f)] a trustee of two distinct settlements, created at different times and wholly independent of each other, devise *all* his trust estates to the same person, can such person accept one estate and disclaim the other? It would probably be held that he might; but he should lose no time in manifesting his intention; for, should he act as owner of one estate and not expressly disclaim the other, the law would presume him to have accepted both.

15. **Position of administrator where executor and trustee renounces.** — If A. be named as executor *and* trustee, and he renounces probate and disclaims the trust, and B. takes out letters of administration with the will annexed; B., though he thus becomes the personal representative, is not also the trustee of the will, nor is he a trustee in any sense, except as holding the surplus assets after the ordinary administration, with notice of a trust. A proper trustee can only be appointed by the Court (g).

16. **Executor converting himself into a trustee.** — Where a fund is given to a person upon certain trusts, and he is appointed executor, as soon as he has severed the legacy from the general assets, and appropriated it to the specific purpose, he dismisses the character of executor, and assumes that of trustee (h). * Indeed, the assent of [*205] the executor to a legacy to himself in trust, however proved, converts him to a trustee (a).

17. **Parol evidence.** — Upon the question of acceptance or non-acceptance of the office, *parol* evidence is of course admissible as on any other issue (b).

(e) *Evans v. John*, 4 Beav. 35.

[(f) 44 & 45 Vict. c. 41, s. 30.]

(g) See *Wyman v. Carter*, 12 L. R. Eq. 309.

(h) *Phillipo v. Munnings*, 2 M. & C. 309; *Byrchall v. Bradford*, 6 Mad. 13; S. C. ib. 235; *Ex parte Dover*,

5 Sim. 500; *Ex parte Wilkinson*, 3 Mont. & Ayr. 145; see *Willmott v. Jenkins*, 1 Beav. 401.

(a) *Dix v. Burford*, 19 Beav. 409.

(b) See *James v. Frearson*, 1 Y. & C. C. 370.